

Building (Oil Storage Installations) Regulations

(Cap. 123 sub. leg. K)

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(Cap. 123, section 38)

[1 May 1978]

(*Format changes—E.R. 5 of 2021*)

Part I

Preliminary

1. Citation

These regulations may be cited as the Building (Oil Storage Installations) Regulations.

2. Interpretation

(1) In these regulations, unless the context otherwise requires—
associated works (相關設施), in relation to an oil storage installation, includes the bunded area and the drainage system of such installation and any pipe-lines within the bunded area, together with any receipt and issue pipe-lines to related jetties, and any surface water drainage system related to the installation; (*L.N. 41 of 1993*)

bunded area (堤壘保護區) means an area completely surrounded by bund walls or embankments for the retention of spillage from any tank within the area;

licence (牌照) means a licence granted or renewed under these regulations;

licensee (持牌人) means the holder of a licence;

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operation instructions (操作指示) means instructions relating to the operation and management of an oil storage installation and its associated works; (*L.N. 41 of 1993*)

Standing Advisory Committee (常務諮詢委員會) means the Standing Advisory Committee established by regulation 4;

(2) (*Repealed L.N. 41 of 1993*)

(*L.N. 41 of 1993*)

Part II

Design, Construction and Standing Advisory Committee

3. Oil storage installations to be designed and constructed to minimise risks of pollution, etc.

Every oil storage installation and its associated works, and any alterations and additions thereto, shall be so designed and constructed as to minimise the risk of environmental pollution, fire and explosion arising from or associated with the storage of petroleum products.

(L.N. 41 of 1993; L.N. 349 of 1993)

4. Standing Advisory Committee

(1) There is hereby established a Standing Advisory Committee to advise the Building Authority on such matters relating to oil storage installations and associated works as the Building Authority may from time to time refer to the Committee, including any of the following matters—

- (a) matters relating to the prevention of environmental pollution, fire and explosion arising from or associated with the operation of oil storage installations and associated works;
- (b) the remedial work or other measures required to reduce the risk of such pollution, fire and explosion at any oil storage installation;
- (c) *(Repealed L.N. 41 of 1993)*
- (d) the regular review of the means of achieving the requirements of these regulations. *(L.N. 41 of 1993)*

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- (2) The Standing Advisory Committee shall consist of such number of persons as the Building Authority may appoint to be members thereof, and each member shall hold office for such period as the Building Authority may in his discretion determine:

Provided that a member may resign at any time by notice in writing addressed to the Building Authority.

- (3) The Standing Advisory Committee shall meet as often as may be necessary for the consideration of matters referred to the Committee under this regulation or as the Building Authority may, by notice in writing to each member, direct. *(L.N. 41 of 1993)*
- (4) The procedure of the Standing Advisory Committee shall be such as the Building Authority may determine. *(L.N. 336 of 1990)*
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Part III

Licensing, Operation, Inspection and Maintenance

(L.N. 37 of 1983)

5. Licensing of oil storage installations

No person shall store or cause or permit to be stored any petroleum products in any oil storage installation without a licence in respect thereof or otherwise than in accordance with the terms or conditions of such licence.

(L.N. 349 of 1993)

6. Procedure for granting or refusing licences

- (1) Application for a licence in respect of any oil storage installation shall be made to the Building Authority in the specified form and shall be accompanied by one copy of the operation instructions for the installation and its associated works. *(L.N. 349 of 1993)*
- (2) *(Repealed L.N. 349 of 1993)*
- (3) Subject to paragraph (4), the Building Authority may, upon payment of a fee of \$47,000, grant a licence to the applicant and may impose such terms and conditions in respect thereof as he thinks fit. *(L.N. 332 of 1985; L.N. 210 of 1991; L.N. 104 of 1993; L.N. 314 of 1994; L.N. 192 of 1995; L.N. 192 of 1996; L.N. 443 of 1997; L.N. 222 of 2004; L.N. 4 of 2011; L.N. 76 of 2014)*
- (4) The Building Authority shall not grant a licence in respect of an oil storage installation unless—
 - (a) the construction of the installation and its associated works has been carried out in accordance with the

Ordinance and conforms to plans approved by the Building Authority under the Ordinance;

- (b) the installation and its associated works have been constructed in accordance with regulation 3 and tests have been carried out which show that the installation and its associated works have been so constructed; and *(L.N. 41 of 1993)*
- (c) *(Repealed L.N. 41 of 1993)*
- (d) the operation instructions for the installation and its associated works are satisfactory for the purpose of minimising the risk of environmental pollution, fire and explosion. *(L.N. 336 of 1990)*
- (5) The Building Authority may at any time by notice in writing served upon the licensee revoke a licence in respect of an oil storage installation on the ground that—
 - (a) any of the provisions of these regulations has been or is being contravened; or
 - (b) any term or condition of the licence has not been or is not being complied with by the licensee. *(L.N. 41 of 1993)*

(L.N. 41 of 1993)

6A. Restriction on amendment of operation instructions

- (1) Operation instructions accepted as satisfactory under regulation 6 shall not be amended without the written authorization of the Building Authority.
- (2) The Building Authority shall not grant his authorization under paragraph (1) unless the amended operation instructions are satisfactory for the purpose of minimising the risk of environmental pollution, fire and explosion.

(L.N. 41 of 1993)

6B. Operation of installations

Every oil storage installation and its associated works shall be operated in accordance with the latest version of the operation instructions accepted as satisfactory by the Building Authority under the provisions of these regulations.

(L.N. 41 of 1993)

7. Expiry and renewal of licences

- (1) A licence shall expire on the expiration of a period of 12 months from the date on which it is granted or renewed.
- (2) Subject to paragraph (4), a licence may be renewed by the Building Authority upon payment of a fee of \$30,300 and the Building Authority may in respect of the renewed licence impose such terms and conditions as he thinks fit. *(L.N. 332 of 1985; L.N. 210 of 1991; L.N. 41 of 1993; L.N. 104 of 1993; L.N. 314 of 1994; L.N. 192 of 1995; L.N. 192 of 1996; L.N. 443 of 1997; L.N. 222 of 2004; L.N. 4 of 2011; L.N. 76 of 2014)*
- (3) Application for renewal of a licence shall be made to the Building Authority in the specified form not less than 2 months prior to the expiry of the licence, and shall be accompanied by the documents referred to in paragraph (4)(a). *(L.N. 41 of 1993; L.N. 349 of 1993)*
- (3A) *(Repealed L.N. 349 of 1993)*
- (4) Unless—
 - (a) there are submitted to the Building Authority in respect of the application for renewal—
 - (i) adequate records relating to the settlement of all tanks in the installation and its foundation; and

- (ii) a statement setting out the findings and recommendations in each case from a registered structural engineer that he has examined the records relating to the settlement of all tanks in the installation,
 - during the 12 months preceding the application; and
- (b) the recommendations given by a registered structural engineer under these regulations have been carried out,
 - the Building Authority may, after taking the advice of the Standing Advisory Committee, refuse to renew a licence in respect of an oil storage installation. (*L.N. 41 of 1993*)

8. Inspection of tanks

- (1) The licensee of any oil storage installation shall cause the installation and its associated works to be inspected by or under the supervision of a registered structural engineer as follows—
 - (a) a general inspection shall be carried out internally not later than the tenth year in the life of each tank, and thereafter an inspection shall be carried out once in every fifth year after the year in which such first-mentioned inspection is carried out; (*L.N. 37 of 1983*)
 - (b) an inspection of the external shell of the tank and of the external joint between the tank shell and the bottom plates thereof shall be carried out annually; (*L.N. 37 of 1983*)
 - (c) an inspection of the associated works shall be carried out annually, (*L.N. 41 of 1993*)

and, on completion of any such inspection, the registered structural engineer concerned shall issue to the licensee a certificate of inspection, in such form as the Building Authority may determine, signed by the engineer and setting

out the results of the inspection and the recommendations of the engineer, if any, as to the necessity for repairs and the nature and extent thereof or whether the tank or the associated works inspected are in his opinion fit for continued use or as the case may require. (*L.N. 41 of 1993*)

- (2) Notwithstanding paragraph (1), the Building Authority may by notice in writing require any licensee to cause any inspection referred to in paragraph (1) to be carried out at any time specified in the notice.
- (3) Every certificate of inspection issued to a licensee under this regulation shall be delivered forthwith by the licensee to the Building Authority.

9. Restriction on use of tanks found to be defective

- (1) Where it appears to the Building Authority that a tank in any oil storage installation is unfit for use or ought not in his opinion to be used for the storage of petroleum products, he may serve or cause to be served upon the licensee a notice in writing—
 - (a) requiring the licensee to empty the tank;
 - (b) prohibiting the continued use of the tank or restricting the use thereof subject to any conditions specified in the notice. (*L.N. 37 of 1983*)
- (2) A notice under this regulation may contain such directions and other requirements relating to the storage of petroleum products in the oil storage installation specified in the notice as the Building Authority may think fit.
- (3) In the event of a failure to comply with a notice given under paragraph (1) the Building Authority may seize, remove and detain any petroleum products stored in the oil storage installation. (*L.N. 37 of 1983*)

- (4) For the purpose of giving effect to any of the powers conferred by this regulation, the Building Authority, and any person authorized by him in writing may—
- (a) enter, inspect and examine any place, building or oil storage installation, and any part thereof, at all times by day and by night;
 - (b) if he is of the opinion that an emergency exists or upon giving notice in writing of an intention to enter, forcibly enter any place, building or oil storage installation in order to seize and remove any petroleum products stored in an oil storage installation. (*L.N. 37 of 1983*)
(*L.N. 349 of 1993*)

10. Restriction on repairs, alterations or additions

- (1) Except in the case of emergency, no person shall carry out any repairs, alterations or additions or cause or permit such works to be carried out to an oil storage installation or its associated works without the written authorization of the Building Authority.
- (2) An application for authorization under paragraph (1) shall be made in writing to the Building Authority who may require the applicant to submit plans showing the proposed alterations or additions.
- (3) In the case of emergency, the licensee of an oil storage installation may, without the authorization of the Building Authority, cause to be carried out to the installation or its associated works any repairs, alterations or additions necessary to reduce the risk of environmental pollution, fire and explosion but shall, as soon as possible after the commencement of the works of the repairs, alterations or additions, give written notice thereof to the Building Authority.

(L.N. 41 of 1993)

10A. Endorsement of alterations or additions

- (1) Where any alterations or additions to an oil storage installation or its associated works have been carried out during the period for which a licence is in force, the licensee shall—
 - (a) make a written application to the Building Authority for endorsement of the alterations or additions on the licence; and
 - (b) return the licence to the Building Authority with that application.
- (2) The Building Authority shall not make the endorsement referred to in paragraph (1) unless—
 - (a) the alterations or additions to which the endorsement relates have been carried out in accordance with the Ordinance and, where plans of the alterations or additions have been approved by the Building Authority, conform to such plans;
 - (b) such alterations or additions have been constructed in accordance with regulation 3 and tests have been carried out which show that such alterations or additions have been so constructed; and
 - (c) the operation instructions for the modified installation or associated works are satisfactory for the purpose of minimising the risk of environmental pollution, fire and explosion.

(L.N. 41 of 1993)

11. Leaking tanks to be reported

Where the licensee of any oil storage installation has reason to

believe that any tank in the installation is leaking, he shall—

- (a) report the circumstances to the Building Authority in writing; or
 - (b) in the case of emergency, take suitable remedial measures forthwith to prevent oil spillage and to reduce the risk of environmental pollution, fire and explosion and immediately report the circumstances to the Building Authority in writing. (*L.N. 41 of 1993*)
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Part IV

Offences

(Part IV replaced L.N. 41 of 1993)

12. Offences

Any person who—

- (a) contravenes any of the provisions of regulation 5, 6A(1), 6B, 10(1) or (3) or 10A(1);
- (b) being a licensee, fails to cause to be carried out any inspection required to be carried out by regulation 8 or fails to deliver to the Building Authority any certificate of inspection required to be delivered to him by that regulation;
- (c) being a licensee, fails to take suitable remedial measures in compliance with regulation 11(b);
- (d) fails to comply with any notice served on him by the Building Authority under these regulations or to do or omit to do any act required by such notice to be done or omitted by such person within the time specified in that behalf in the notice;
- (e) wilfully causes or permits to be caused any oil spillage at any oil storage installation which—
 - (i) pollutes or is likely to pollute the environment outside the perimeter of such installation and its associated works; or
 - (ii) increases or is likely to increase the risk of fire and explosion;

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(f) knowingly misrepresents any material fact, or supplies any particulars which he knows or has reason to believe are false, in respect of any plan, form, notice or operation instructions under these regulations, shall be guilty of an offence and liable on conviction to a fine at level 6 and to imprisonment for 2 years.

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Schedule

(Repealed L.N. 349 of 1993)